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EXHIBIT 10.1

10. Force Majeure.

not set forth in this contract, and that no agreement, statement, or promise not contained in this contract shall be valid or binding

20. Partial Invalidity. If any term or provision of this Agreement is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remainder of the provisions of this agreement shall remain in full force and effect and shall in no way be affect impaired, or invalidated.

21. Government Regulation. This Agreement is subject to all applicable federal, state and municipal laws, regulations and ordinances, whether existing or enacted hereafter, including the rules and regulations of all governmental agencies or commissions having ju in matters covered by this Agreement or either of the parties hereto.

This Agreement is executed in duplicate on the 5th day of December, 2007, in Fort Worth, Tarrant County, Texas, to be effective January

R. C. BOYD ENTERPRISES, LLC

By: /s/ R.C. Boyd

Printed Name: R.C. Boyd
Title: President

CANO PETROLEUM, INC.

By: /s/ Jeff Johnson

Printed name: Jeff Johnson
Title: CEO

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